

§ 340.2. Presiding judge. 1. The judge who presides at the commencement of the fact-finding hearing shall continue to preside until such hearing is concluded and an order entered pursuant to section 345.1 unless a mistrial is declared.

2. The judge who presides at the fact-finding hearing or accepts an admission pursuant to section 321.3 shall preside at any other subsequent hearing in the proceeding, including but not limited to the dispositional hearing.

3. Notwithstanding the provisions of subdivision two, the rules of the family court shall provide for the assignment of the proceeding to another judge of the court when the appropriate judge cannot preside:

(a) by reason of illness, disability, vacation or no longer being a judge of the court in that county; or

(b) by reason of removal from the proceeding due to bias, prejudice or similar grounds; or

(c) because it is not practicable for the judge to preside.

4. The provisions of this section shall not be waived.